

settlor himself contemplates some further act for the purpose of giving it completion (b).

2. **Where the settlor declares himself a trustee.**—If the settlor proposes to *convert himself* into a trustee, then the trust is *perfectly created*, and will be enforced so soon as the settlor has executed an express declaration of [*68] trust, intended to *be final and binding upon him, and in this case it is immaterial whether the nature of the property be legal or equitable, whether it be capable or incapable of transfer (a).¹

(b) *Cotteen v. Missing*, 1 Mad. 176; *Bayley v. Boulcott*, 4 Russ. 345; *Dipple v. Corles*, 11 Hare, 183; *Jones v. Lock*, 1 L. R. Ch. App. 25; *Lister v. Hodgson*, 4 L. R. Eq. 30; *Heartley v. Nicholson*, 19 L. R. Eq. 233.

(a) *Gee v. Liddell*, 35 Beav. 621; *Morgan v. Malleson*, 10 L. R. Eq. 475; *Armstrong v. Timperon*, W. N. 1871, p. 4; *Ex parte Pye*, or *Ex parte Dubost*, 18 Ves. 140; *Thorpe v. Owen*, 5 Beav. 224; *Stapleton v. Stapleton*, 14 Sim. 186; *Vandenberg v. Palmer*, 4 Kay & J. 204; *Searle v. Law*, 15 Sim. 99; *Steele v. Waller*, 28 Beav. 466; *Paterson v. Murphy*, 11 Hare, 88; *Drosier v. Brereton*, 15 Beav. 221; *Bentley v. Mackay*, 15 Beav. 12; *Bridge v. Bridge*, 16 Beav. 315; *Gray v. Gray*, 2 Sim. N. S. 273; *Wilcocks v. Hannington*, 5 Ir. Ch. Rep. 38; [*Kelly v. Walsh*, 1 L. R. Ir. 275; *Re Shield*, W. N. 1884, p. 127. *Re Shield*,

has been reversed on appeal, W. N. 1885, p. 83.] In the case of *McFadden v. Jenkyns*, 1 Hare, 471; Sir J. Wigram expressed himself more cautiously than was necessary, as to the jurisdiction of the Court in enforcing a trust against the settlor himself, and suggested several accompanying circumstances as material to the establishment of such a trust. "If," he said, "the owner of property having the legal interest in himself, were to execute an instrument by which he declared himself a trustee for another, and had disclosed that instrument to the *cestui que trust*, and afterwards acted upon it, that might perhaps be sufficient; or a Court of equity, adverting to what Lord Eldon said in *Ex parte Dubost*, might not be bound to inquire further into an equitable title so established in evidence."

¹ VOLUNTARY AGREEMENTS. — *Trust not perfectly created.* — Where there is an intention merely to create a trust, and the settlor must take further action, it cannot be enforced; *Evans v. Battle*, 19 Ala. 398; *Swan v. Frick*, 34 Md. 139; *Lanterman v. Abernathy*, 47 Ill. 437; *Minturn v. Seymour*, 4 Johns. Ch. 498; *Banks v. May*, 3 A. K. Marsh, 435.

Trust perfectly created. — If nothing further remains for the settlor to do, the trust will be executed, except as against creditors and *bona fide* purchasers without notice, though there has been no change of possession; *Stone v. Hackett*, 12 Gray, 227; *Lane v. Ewing*, 31 Mo. 75; *Howard v. Bank*, 40 Vt. 597; *Padfield v. Padfield*, 68 Ill. 210; *Graham v. Lambert*, 5 Humph. 595; the transfer of certificates of stock is sufficient to pass the title; *Sherwood v. Andrews*, 2 Allen, 79; *Blasdel v. Locke*, 52 N. H. 238; *Millspaugh v. Putnam*, 16 Abb. Pr. 380; without any change upon the corporation books; *Eames v. Wheeler*, 19 Pick. 444; *Sargent v. Ins. Co.* 8 Pick. 96; *Quiner v. Marblehead*